

Syed Fazal Fakhri v. Purvanchal Vidyut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 17 July 2023 · 2023:AHC:141087-DB · WRIT - C No. 22553 of 2023 · **Disposed of; second respondent to consider the clause 6.5B objection within six weeks.**

HEADNOTE

A grievance that a demand raised after an Ombudsman's order does not follow that order is examined on an objection under clause 6.5B of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction to consider the pending objection within six weeks.

FACTUAL SUMMARY

The Electricity Ombudsman, on 31 January 2023, partly accepted Syed Fazal Fakhri's claim against Purvanchal Vidyut Vitran Nigam Ltd. and directed the Executive Engineer to pass a fresh order. The petitioner said the dues were not determined as directed and that his objections were ignored. The licensee answered that a demand of Rs. 1,20,826 had been raised under that order. The petitioner disputed the demand and stated that he had already objected before the competent forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5B

Objection to a post-Ombudsman bill under clause 6.5B

HOLDING

Any person aggrieved by a determination of liability to pay an electricity bill may object under clause 6.5B of the U.P. Electricity Supply Code, 2005. Whether a demand raised after an Ombudsman's order accords with that order is to be examined while considering such an objection. The petition was disposed of with a direction to the second respondent to consider the petitioner's clause 6.5B objection, keeping the Ombudsman's directions in view, within six weeks of production of a certified copy. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court treated an objection under clause 6.5B as the remedy for a consumer aggrieved by the determination of bill liability, including a demand said not to follow the Ombudsman's directions. ¶ 1-2

clause-6.5-pending-representation-to-be-decided The objection already preferred under clause 6.5B was directed to be considered by the second respondent within six weeks, in light of the Ombudsman's order dated 31.01.2023. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 1,20,826 ACCORDS WITH THE OMBUDSMAN'S ORDER DATED 31.01.2023

Left to be examined on the petitioner's clause 6.5B objection. ¶ 1-2